NeuroPathways Consumer Health Privacy Policy

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NeuroPathways ("NeuroPathways," "we," "our," or "us") provides a behavioral-health support platform that allows parents, caregivers, clients, and other authorized users to upload health-related documents and convert information contained in those documents into more accessible summaries, goals, support information, and other tools.

We recognize that behavioral and mental health information is highly sensitive. This Privacy Policy explains what information NeuroPathways collects, why we collect it, how it is used and protected, when it may be disclosed, and the choices users have regarding their information.

1. Important Information About NeuroPathways

The current consumer version of NeuroPathways is designed for individuals who independently choose to use the platform.

NeuroPathways is not a healthcare provider, health plan, or health insurance company. Unless NeuroPathways is specifically providing services on behalf of a healthcare provider or another HIPAA-regulated entity under an applicable agreement, use of the consumer application does not necessarily create a relationship governed by the Health Insurance Portability and Accountability Act ("HIPAA").

Health information voluntarily provided to a consumer application that is not acting for a HIPAA covered entity may not receive the same protections under HIPAA that apply while the information is maintained by a healthcare provider.

Other federal and state privacy, consumer-protection, health-information, breach-notification, and security laws may nevertheless apply to NeuroPathways and the information we maintain.

2. Information You Choose to Provide

NeuroPathways may collect information that users voluntarily provide, including:

- account and contact information;
- information identifying the individual receiving behavioral or mental health services;
- treatment plans;

- behavior intervention plans;
- safety or crisis plans;
- goals and recommendations;
- progress or clinical records;
- assessments;
- caregiver observations;
- behavioral logs;
- information entered directly into NeuroPathways;
- communications with NeuroPathways; and
- other documents or health information a user chooses to upload.

Documents uploaded to NeuroPathways may contain highly sensitive medical, behavioral-health, mental-health, disability, developmental, family, or other personal information.

Users should upload only information that they are legally authorized to possess and share.

3. Parent, Guardian, and Authorized-User Responsibility

When uploading information concerning another person, including a minor child, the user represents that the user has the legal authority necessary to possess and provide that information to NeuroPathways.

By uploading a document, the user represents that:

1. the document was lawfully obtained;
2. the user is authorized to possess and upload it;
3. providing the document to NeuroPathways does not knowingly violate another person's legal rights; and
4. the user understands that the document may contain sensitive health information.

NeuroPathways does not independently determine whether every parent, guardian, caregiver, or other user has a legal right to every document uploaded. Rights concerning minors' health information may vary depending on the circumstances and applicable law.

4. Your Choice to Share Health Information With NeuroPathways

Uploading health information to NeuroPathways is voluntary.

Before uploading medical or behavioral-health documentation, users should understand that they are choosing to provide the information contained in those records to NeuroPathways so that NeuroPathways can perform the services requested by the user.

By selecting **“I Agree,” “Continue,” “Upload,”** or a similar confirmation, the user acknowledges that:

- the user is voluntarily providing potentially sensitive health information to NeuroPathways;
- NeuroPathways must receive, store, and process that information to provide applicable features;
- electronic storage and transmission of information involves security risks and no electronic system can guarantee absolute security; and
- the user should not upload information the user does not want NeuroPathways to process as described in this Privacy Policy.

This acknowledgment does not waive rights or protections that cannot legally be waived and does not eliminate NeuroPathways' obligations under applicable privacy, security, consumer-protection, or breach-notification laws.

5. How NeuroPathways Uses Uploaded Information

NeuroPathways may process information provided by users to provide requested platform functionality, including:

- storing and organizing documents;
- identifying information contained in uploaded documents;
- simplifying complex clinical language;
- organizing clinician-defined goals;
- identifying behaviors, interventions, recommendations, and safety information documented in uploaded records;
- creating accessible support cards or summaries;
- maintaining behavioral or progress logs;
- presenting information contained in existing plans in a more accessible format;
- allowing users to review their information; and
- enabling information to be shared with a clinician when the user affirmatively chooses to connect or share with that clinician.

NeuroPathways is designed to support access to existing care information. It is not intended to independently diagnose medical or mental-health conditions or replace licensed healthcare professionals.

6. Artificial Intelligence and Automated Processing

Certain NeuroPathways features may use automated systems or artificial intelligence to organize, extract, summarize, or present information contained in documents provided by users.

Where applicable, NeuroPathways will use service providers that meet NeuroPathways' privacy and security requirements for the information they process.

NeuroPathways will not intentionally use identifiable private health documents to train public or general-purpose artificial-intelligence models unless the user has been provided legally sufficient notice and consent where required. NeuroPathways' production architecture should be configured so that providers processing sensitive information are contractually and technically restricted from using that information for unrelated purposes.

Automated output may contain errors. Users should refer to original clinical documentation and qualified healthcare professionals when making treatment or safety decisions.

7. Information Sharing

NeuroPathways does not sell users' private medical records.

NeuroPathways will not disclose private health documents to advertisers for targeted advertising based on the contents of those records.

Information may be disclosed when reasonably necessary to:

- provide infrastructure, hosting, security, document processing, or other services requested through the platform;
- comply with applicable legal obligations;
- respond to valid legal process;
- protect the security and integrity of NeuroPathways;
- investigate fraud, abuse, or security incidents;
- protect individuals when disclosure is legally permitted or required; or
- carry out another disclosure specifically authorized by the user.

Service providers receiving sensitive information will be subject to appropriate contractual and security requirements based on the services they provide and applicable law.

8. Sharing Information With a Clinician

NeuroPathways will not automatically treat a healthcare provider as having access to a user's consumer account merely because the provider originally created a document uploaded by the user.

A user may affirmatively choose to connect a clinician or healthcare organization to NeuroPathways.

Additional privacy notices, permissions, authorizations, contractual terms, or Business Associate Agreements may apply when NeuroPathways begins providing services on behalf of a HIPAA covered healthcare provider.

9. Security

NeuroPathways recognizes that no electronic service can guarantee that a security incident will never occur.

NeuroPathways will maintain reasonable administrative, technical, and organizational safeguards appropriate to the sensitivity of the information it maintains. These may include access controls, authentication, encryption, logging, secure infrastructure, monitoring, backups, vulnerability management, employee access restrictions, and incident-response procedures.

Users are responsible for maintaining the confidentiality of their login credentials and for notifying NeuroPathways if they believe their account has been compromised.

10. Data Breaches and Security Incidents

If NeuroPathways discovers unauthorized acquisition, access, use, or disclosure of health information, NeuroPathways will investigate the incident and take appropriate steps consistent with applicable law.

Where notification is legally required, NeuroPathways will provide required notices to affected individuals and applicable governmental authorities.

Acceptance of this Privacy Policy does not constitute a waiver of legally required breach-notification rights.

11. Data Retention and Deletion

NeuroPathways will retain personal information for as long as reasonably necessary to provide the service, fulfill legitimate operational or legal requirements, resolve disputes, maintain security, and comply with applicable law.

Users may request deletion of eligible account information and uploaded documents. Certain information may need to be retained when required by law, necessary for security or fraud-prevention purposes, or subject to another lawful retention requirement.

NeuroPathways will provide users with information regarding applicable deletion procedures through the application or designated privacy contact.

12. Children and Minors

NeuroPathways may contain information concerning minors when an authorized parent, guardian, healthcare provider, or other legally authorized person uses the service.

The consumer version of NeuroPathways is intended to be controlled by authorized adults unless NeuroPathways expressly provides a separate service permitting direct use by minors.

Parents and guardians should not assume that they are legally entitled to every category of a minor's medical or mental-health information. State law, minor-consent rules, court orders, confidentiality protections, or other circumstances may limit parental access.

13. Third-Party Documents and Intellectual Property

Uploading a document to NeuroPathways does not transfer ownership of the underlying document to NeuroPathways.

Users retain whatever rights they have in information they provide and grant NeuroPathways only the rights reasonably necessary to process the information and provide the requested service, subject to applicable terms.

Users should not upload copyrighted, proprietary, licensed, or confidential materials they are not authorized to provide.

NeuroPathways may process patient-specific information contained in lawfully uploaded records for the user's individual use but does not obtain the right to redistribute a provider's proprietary materials merely because a user uploaded them.

14. Changes to This Privacy Policy

NeuroPathways may update this Privacy Policy as the service, technology, legal requirements, or privacy practices change.

Material changes affecting the handling of sensitive health information will be communicated as required by applicable law.

15. Contact and Privacy Requests

Questions, complaints, access requests, deletion requests, or concerns regarding NeuroPathways' privacy practices may be directed to:

NeuroPathways Privacy Team
Email: _____
Address: _____
Phone: _____

USER HEALTH-INFORMATION ACKNOWLEDGMENT

Before uploading health information, the user will be asked to acknowledge:

☐ **I understand that I am choosing to provide private and potentially sensitive health information to NeuroPathways.**

☐ **I confirm that I am authorized to possess and upload the records and information I provide.**

☐ **I authorize NeuroPathways to receive, store, and process the information I provide for the purpose of delivering the NeuroPathways services I request, as described in the Privacy Policy.**

☐ **I understand that electronic transmission and storage involve security risks and that no electronic system can guarantee absolute security.**

☐ **I understand that NeuroPathways is a support and information-access tool and is not a replacement for my healthcare provider or emergency services.**

☐ **I understand that accepting these terms does not waive legal privacy, security, or breach-notification rights that cannot lawfully be waived.**

[I AGREE AND CONTINUE]

References and Legal Framework

U.S. Department of Health and Human Services, Office for Civil Rights. *The Access Right, Health Apps, & APIs.*

U.S. Department of Health and Human Services, Office for Civil Rights. *HIPAA Covered Entities and Business Associates.*

Federal Trade Commission. *Health Breach Notification Rule, 16 C.F.R. Part 318.*

Federal Trade Commission. *Mobile Health App Interactive Tool.*

Adapted in part from the privacy and PHI principles reflected in the NeuroPathways HIPAA Privacy & Compliance Policy, the course-provided Safe Haven Counseling Center Notice of Privacy Practices, and current HHS and FTC consumer-health privacy guidance.